



DATA FOR GOOD

PROJECT SALT BOX

projectsaltbox@proton.me

projectsaltbox.com

September 9, 2026

VIA Electronic Submission

Privacy Office, Disclosure and FOIA Program

U.S. Department of Homeland Security

245 Murray Lane SW, STOP 0655

Washington, DC 20528-0655

foia@hq.dhs.gov

Attn: Office of Public Affairs

Re: Freedom of Information Act Request / Expedited Processing Requested

To whom it may concern:

This letter constitutes a request pursuant to the Freedom of Information Act, 5 U.S.C. § 552, seeking records concerning the use of generative artificial intelligence to produce public-facing imagery published by the Department of Homeland Security (DHS). The request is submitted by Project Salt Box, an all volunteer investigative news organization ("Requester"). It is directed to the DHS Office of Public Affairs (OPA), including any digital media, social media, or creative services branch within that office responsible for content published to the @DHSgov account on X.

I. Background

On September 9, 2026, at approximately 10:22 a.m., the verified @DHSgov account on X published an image styled as a motion picture poster.¹ The image depicts an animated robot figure bearing the DHS seal facing a man shown in profile, over a city skyline. Overlaid text reads "SELF-DEPORT OR FIND OUT," "AMERICA FOR AMERICANS," and "GET OFF OUR ROADS, YOU DON'T KNOW HOW TO DRIVE MR. SINGH." The post carried the marks of a commercial entertainment franchise. Within hours of posting it had accumulated more than 780,000 views. A screen capture of the post is reproduced at Attachment 1.

¹ U.S. Dep't of Homeland Sec. (@DHSgov), X (Sept. 9, 2026, 10:22 AM), <https://x.com/DHSgov/status/2097692131900916176>.

The image bears visual characteristics associated with generative artificial intelligence, including synthetic rendering of the human figure and machine-generated text artifacts in the lower credit block.

The overlaid caption directs a named individual, “Mr. Singh,” to leave American roads on the stated ground that he does not know how to drive. Singh is among the most common surnames among Sikhs, and the accompanying figure depicts a South Asian man. The Department published this content over its own seal, on its official account, as government speech.

The Department's publication of this content is consistent with a documented and continuing practice. CNN reported in August 2025 that the Department's social media output draws on motifs of White identity and includes AI-generated artwork responding to news events, and that several artists and artists' foundations had asked the Department to stop using their work.² NPR reported the same month that official government accounts, including the Department's, had published white supremacist tropes alongside viral jokes.³ In December 2025, Axios reported that the Department published Christmas-themed posts promoting its deportation agenda using AI-generated or edited images, and that the Department and the White House had received legal threats and public objections over the use of others' intellectual property in deportation-related content.⁴ A Department spokesperson responded that it would continue using every tool at its disposal to keep the American people informed.

DHS has publicly documented its adoption of generative AI. The Department launched an internal generative AI chatbot, DHSChat, in December 2024, and separately began permitting employees to use commercially available generative AI tools on publicly available information.⁵ DHS also maintains a public inventory of its AI use cases, which lists an enterprise use case for commercial generative AI for text generation available to DHS employees in day-to-day work.⁶ DHS guidance requires that personnel adhere to rules of behavior for generative AI use and complete required training before access is granted.

² Priscilla Alvarez et al., *On Social Media, the Department of Homeland Security Appeals to Nostalgia, with Motifs of White Identity*, CNN, Aug. 13, 2025, <https://www.cnn.com/2025/08/13/politics/homeland-security-department-social-media>.

³ Jude Joffe-Block and Shannon Bond, *Trump Officials Post Viral Memes About Deportation*, NPR, Aug. 18, 2025, <https://www.npr.org/2025/08/18/nx-s1-5482921/memes-white-house-dhs-social-media-trump>.

⁴ April Rubin, *DHS Shares Christmas-Themed Deportation Memes*, Axios, Dec. 8, 2025, <https://www.axios.com/2025/12/08/dhs-christmas-deportation-memes-ice-cbp>.

⁵ Michael Boyce, *DHS's Responsible Use of Generative AI Tools*, U.S. Dep't of Homeland Sec., Dec. 17, 2024, <https://www.dhs.gov/archive/news/2024/12/17/dhss-responsible-use-generative-ai-tools>.

⁶ DHS Enterprise AI Use Cases, U.S. Dep't of Homeland Sec., <https://www.dhs.gov/ai/use-case-inventory/dhs-enterprise>

Requester is concerned about the civil rights and civil liberties implications of a federal department using generative artificial intelligence to produce official messaging that identifies its subjects by apparent national origin, religion, or ethnicity.

The public presently has no information about how such content is produced or approved. It does not know whether generative AI produced The Image, which tool was used, what instructions were given to that tool, who reviewed or authorized the result, whether any civil rights or civil liberties review was conducted, whether the Department's own rules of behavior for generative AI were applied, or whether image generation for public-facing messaging appears anywhere in the DHS AI Use Case Inventory. Nor does the public know whether the work was performed by Department personnel or by a contractor.

The prompt is the record that most directly answers these questions, because it reflects what a federal employee or contractor instructed a machine to produce on the government's behalf. Requester therefore requests the following records.

II. Definitions

For purposes of this request, please apply the following definitions:

“The Image” means the graphic published by the @DHSgov account on X on September 9, 2026, reproduced at Attachment 1, and any variant, draft, or alternate version of that graphic.

“Generative AI tool” means any software, service, model, application, or system, whether developed internally, procured commercially, or accessed through a third party, that produces or modifies images, text, or other content in response to text prompts or comparable user inputs. This includes but is not limited to standalone image generation services, generative features embedded within graphic design or photo editing software, and generative features embedded within enterprise productivity or collaboration software.

“Prompt” means any text, instruction, reference image, negative prompt, style directive, seed value, model selection, or other parameter submitted to a generative AI tool in the course of producing or modifying content.

“Record” has the meaning given in 5 U.S.C. § 552(f)(2) and includes records in electronic form regardless of the application or platform in which they were created or are stored.

III. Records Sought

Please provide the following records created or received between August 1, 2026 and September 18, 2026 is conducted:

1. Any prompt, prompt log, prompt history, session transcript, or generation parameter used to produce or modify The Image, in whole or in part.

2. Records sufficient to identify each generative AI tool used to produce or modify The Image, including the name of the tool, the vendor, the model or version, and the account or license under which it was accessed.
3. Records sufficient to identify the office, employee, detailee, intern, or contractor who produced The Image and each person who reviewed, cleared, or approved it for publication.
4. The Image as published, together with any source, layered, working, or intermediate file, produced in original file format with all embedded metadata intact. **Requester specifically asks that these files not be converted to PDF, flattened, re-encoded, or otherwise processed in a manner that strips metadata, and that any such processing be disclosed if it occurs.**
5. All records, including electronic communications, reflecting the drafting, review, clearance, or approval of The Image prior to publication.
6. All records reflecting any internal discussion of The Image after publication, including any assessment of public reaction, any legal or ethics review, and any discussion of removing, editing, or retaining the post.
7. Any record reflecting a civil rights or civil liberties review of The Image, and any communication between the Office of Public Affairs and the DHS Office for Civil Rights and Civil Liberties concerning The Image.
8. Any statement of work, task order, contract, deliverable, invoice, or licensing agreement covering graphic design, creative services, or social media content production for the Office of Public Affairs during the date range above.
9. Any policy directive, guidance document, rule of behavior, training material, or approval record governing the use of generative artificial intelligence to produce public-facing DHS content, and any record reflecting whether the use described in this request was reviewed under those requirements or reported in the DHS AI Use Case Inventory.
10. Any record reflecting review of intellectual property, trademark, or licensing questions arising from the use of a commercial entertainment franchise's marks or characters in official DHS communications, including any communication with the rights holder.

IV. Preservation of Records

Requester asks that DHS preserve all potentially responsive records pending completion of this request and any administrative appeal or litigation, including records maintained in systems subject to automatic deletion or retention limits, and including any account or session history maintained by a third party generative AI vendor on the Department's behalf.

V. Application for Waiver or Limitation of Fees

Requester seeks a waiver of search, review, and duplication fees on the ground that disclosure of the requested records is in the public interest because it is likely to contribute significantly to public understanding of the operations or activities of the government and is not primarily in the commercial interest of the Requester. 6 C.F.R. § 5.11(k); see also 5 U.S.C. § 552(a)(4)(A)(iii).

Requester separately seeks a limitation of fees as a representative of the news media. 5 U.S.C. § 552(a)(4)(A)(ii)(II); 6 C.F.R. § 5.11(b)(6).

A. The request is likely to contribute significantly to public understanding of the operations or activities of the government and is not primarily in the commercial interest of the Requester.

The records sought concern how a federal department produces the official messaging it directs at the public. Whether the Department used generative artificial intelligence to create that messaging, which tool it used, who authorized it, and whether the use complied with the Department's own governance requirements are questions on which the public currently has no information. The subject is not peripheral to the Department's operations. The Department has publicly committed to transparency regarding its adoption of artificial intelligence through its AI Use Case Inventory, and the records sought would establish whether public-facing image generation falls inside or outside that disclosed framework.

The public interest is heightened by the documented and continuing character of the practice described in Section I. Reporting by CNN, NPR, and Axios has established that the Department's use of AI-generated imagery in official messaging is sustained rather than incidental, and that it has already produced objections from artists, from rights holders, and from religious organizations. What that reporting has not been able to establish, and what only these records can establish, is the internal process behind it.

Requester is not filing this request to further any commercial interest. Project Salt Box is an all volunteer organization. Any records disclosed will be published in full and made available to the public at no cost.

B. Requester is a representative of the news media and the records are not sought for commercial use.

Requester meets the statutory definition of a representative of the news media because it is an entity that gathers information of potential interest to a segment of the public, uses its editorial skills to turn the raw material into a distinct work, and distributes that work to an audience. 5 U.S.C. § 552(a)(4)(A)(ii)(III); 6 C.F.R. § 5.11(b)(6).

Project Salt Box publishes original investigative reporting on federal contracting, immigration enforcement infrastructure, and federal real property acquisition at projectsaltbox.com, and maintains a public research tool at tracker.projectsaltbox.com. Recent published work includes reporting on detention facility procurement, federal warehouse acquisitions, and General Services Administration leasing solicitations. Requester's reporting has been relied upon by other news organizations. Requester routinely publishes the underlying records it obtains, at no charge, alongside its reporting.

Courts have found comparable organizations to qualify as representatives of the news media. See *Nat'l Sec. Archive v. Dep't of Defense*, 880 F.2d 1381, 1387 (D.C. Cir. 1989) (organization that gathers information, exercises editorial discretion in selecting and organizing documents, and distributes the resulting work to the public is a representative of the news media); *Cause of Action v. IRS*, 125 F. Supp. 3d 145 (D.D.C. 2015); *Judicial Watch, Inc. v. Dep't of Justice*, 133 F. Supp. 2d 52, 53-54 (D.D.C. 2000).

VI. Application for Expedited Processing

Requester seeks expedited processing pursuant to 5 U.S.C. § 552(a)(6)(E) and 6 C.F.R. § 5.5(e). There is a compelling need for these records because the information is urgently needed by a person primarily engaged in disseminating information in order to inform the public concerning actual or alleged federal government activity. 5 U.S.C. § 552(a)(6)(E)(v)(II).

A. Requester is primarily engaged in disseminating information in order to inform the public about actual or alleged government activity.

Obtaining records about federal government activity, analyzing them, and publishing them to the public are Project Salt Box's primary activities. Requester operates no other line of business. As described in Section V.B, Requester regularly disseminates information to the public through its website, its public research tool, and releases to other news organizations, and plans to analyze, publish, and disseminate the information obtained through this request at no cost to the public.

B. The records sought are urgently needed to inform the public about actual or alleged government activity.

These records are urgently needed to inform the public about actual or alleged federal government activity. See 5 U.S.C. § 552(a)(6)(E)(v)(II); 6 C.F.R. § 5.5(e)(1)(ii). The conduct at issue is ongoing, and the Department has stated publicly that it intends to continue.⁷ Federal agency use of generative artificial intelligence to produce public messaging is the subject of substantial and continuing media attention.⁸ Each additional publication compounds the public interest in understanding what internal controls, if any, govern the production of official content of this kind. Information disclosed after the practice has concluded cannot serve the oversight function the FOIA was enacted to support. The urgency is further heightened because generative AI session data and internal messaging records are frequently subject to short retention periods, and delay increases the likelihood that responsive records will no longer exist.

VII. Conclusion

Pursuant to applicable statutes and regulations, Requester expects a determination regarding expedited processing within ten calendar days. See 5 U.S.C. § 552(a)(6)(E)(ii).

⁷ Rubin, *supra* note 4.

⁸ See sources cited *supra* notes 2 through 4.

Please provide all records in electronic format. If this request is denied in whole or in part, Requester asks that DHS justify each withholding by reference to a specific FOIA exemption, release all reasonably segregable portions of otherwise exempt material, and provide an index of records withheld. Requester reserves the right to appeal any decision to withhold information or to deny a waiver or limitation of fees. See 6 C.F.R. § 5.9.

If you determine that another DHS component or office maintains responsive records, please refer this request to that office and notify Requester of the referral rather than closing this request.

Thank you for your prompt attention to this matter. Please furnish the applicable records to:

Michael Wriston
Project Salt Box
projectsaltbox@pm.me

I affirm that the information provided in support of the request for expedited processing is true and correct to the best of my knowledge and belief. See 5 U.S.C. § 552(a)(6)(E)(vi).

Sincerely,

Michael Wriston
Investigative Reporter
Project Salt Box

ATTACHMENT 1

Screen capture of the post published by the U.S. Department of Homeland Security (@DHSgov) on X on September 9, 2026, at 10:22 a.m.

Permalink: <https://x.com/DHSgov/status/2097692131900916176>

Captured September 9, 2026.

